

MORAL AND CITIZENSHIP EDUCATION (MCED 1011)

Chapter One: Understanding Civics and Ethics

- A Seed will only become a flower if it gets sun and water.
 - Louis Gottschalk.
- Since human being is a social animal and couldn't live alone, he/she has to respect certain fundamental principles and values to live together with his/her fellow beings and consequently build peaceful society and lead prosperous life.
- As Johan Stuart Mill (1972)
- described it, progressive and peaceful setting subsists in a given society as far as that society develops the qualities of its members and generates good citizens.
- Aristotle (1955) also added that citizens of a State should always be educated to suit the constitution of a State. Accordingly, creating a good citizen has been the prior concern of many States, including Ethiopia. This is because good citizens are made not born.

- Though the most cited definition of **civic education is an education** that studies about the rights and responsibilities of citizens
- **For instance, Patrick (1986) defines civic education** as the knowledge of the constitutions, the principles, values, history and application to contemporary life.
- **Citizenship education** can be understood as the knowledge, means, and activities designed to encourage students to participate actively in democratic life,
- **United Nations Development Program (UNDP, 2004)** defines civic education as a way of learning for effective participation in a democratic and development process.
- **Still the subject matter can be also defined as the process of helping young people acquire and learn to use the skills, knowledge, and attitudes that will prepare them to be competent and responsible citizens throughout their lives**

The Definition and Nature of Ethics and Morality

What Ethics is?

- **Ethics is**
a branch of philosophy that attempts to understand people's moral beliefs and actions
- 'ethics' described the process of thinking about people's morality).
- Ethics, or moral philosophy, considers theories about

what human beings are capable of doing, alongside accounts of what they ought to do if they are to live an ethically good life.
- Ethics also explores the meaning and the ranking of different ethical values,

such as - honesty, - autonomy,

 - equality and justice, and it considers ethical quandaries
- Ethics may share common ground with

the law, religious belief
popular opinion, professional codes and the dictates of authority figures,

- Invariably all ethical questions involve a decision about what one *should* do in a specific instance.
- Ethical questions are not concerned with what one would do (an essentially psychological concern) but what one *ought* to do. Judgments about such decisions are generally expressed with words like right and wrong, should and ought, or obligation and duty
- Occasionally the term ethics is used interchangeably with morals.
- Business or medical ethics, for example, is generally synonymous with morals. Although this is acceptable, a precise usage would apply the term's morals and moral to the conduct itself, while the terms ethics and ethical would refer to the study of moral conduct or to the code that one follows.
- Thus, the specific act of telling the caller you were home could be described as moral or immoral. But what makes any act moral or immoral, right or wrong fall within the province of ethics.
- Ethicists often disagree about the nature of those standards and desirable qualities and follow different paths in establishing standards and discovering which qualities are desirable. For purposes of understanding, though, we can view ethics as divided into two fields;
- normative ethics and non-normative ethics.

- **Generally, Ethics is:**

- The critical examination and evaluation of what is good, evil, right and wrong in human conduct (Guy, 2001).
- A specific set of principles, values and guidelines for a particular group or organization (Guy, 2001).

Ethics

- is the study of goodness, right action and moral responsibility, it asks what choices and ends we ought to pursue and what moral principles should govern our pursuits and choices (Madden, 2000).

What is Morality?

- morality is a complex concept.
- Though it is one of most frequently used terms, it can mean different things to different people.
- Morality is a commonly used word in most cultures. Some Scholars argued that if we do not know what morality is we cannot teach it.
- In crucial ways we do not know what morality is. Yet we must teach it because it is of prime importance and must be learned.
- Moreover, teaching must not be brainwashing; it must be moral. So, in order to understand Moral and Civics Education, the term “moral” needs to be understood
- Morality can be viewed from different perspectives and let us start with the simple definition of the word itself. Morality from a dictionary definition (from Latin *moralitas* “manner, character, proper
- behavior”) refers to the concept of human action which pertains to matters of right and wrong – also referred to as “good and evil”.

- Morality has been a topic of discussion for a very long time. According to Socrates “We are discussing no small matter, but how we ought to live” when issues of morality are discussed.
- **Morality is,**
at the very least, the effort to guide one’s conduct by reason that is, to do what there are the best reasons for doing while giving equal weight to the interest of each individual who will be affected by one’s conduct. It is important that in a countries like Ethiopia, morality is shared as a common goal to ensure harmony and integrity.

- Terms such as morality and ethics are often used interchangeably in everyday speech as referring to justified or proper conduct. But ethics is usually associated with a certain conduct within a profession,
- for example, the code of ethics for the teaching profession.
- Morality is a more general term referring to the character of individuals and community.
- In other words, Morality is used to refer to what we would call moral conduct while ethics is used to refer to the formal study of moral conduct.

- Those principles and values that actually guide, for better or worse, an individual's personal conduct (Guy, 2001)
- **Morality is**
- the informal system of rational beings by which they govern their behavior in order to lessen harm or evil and do good,
- this system, although informal, enjoys amazing agreement across time and cultures concerning moral rules, moral ideas and moral virtues (Madden, 2000)

Ethics

- Is philosophical study of the code, standards or norm of human conduct and it is more theoretical and general one.
- Ethics establish the standards, norms, or codes to be followed by human beings are the study of morality, moral principles, and moral decision making.
- Is the development of reasonable standards and procedures for ethical decision-making?
- Is a set of normative rules of conduct, a code, a standards that govern what one ought to do when the well-being, or duties to oneself, others or institutions is at stake.

Morality

- refers to the code of conduct one follows while ethics is the study of moral conduct or the study of the code that one follows
- is the conformity of human behavior to the established code of conduct .If an action conform to the established code, it is called moral ,if not immoral
- refers to the effort to guide one's conduct by reason while giving equal weight to the interests of each individual who will be affected by one's conduct
- Has to do with what one should do, all things considered, not what, in fact, any of us *will* so in a particular instance

Ethics and Law

- laws are norms, formally approved by state, power or national or international political bodies. Many laws are instituted in order to promote well-being, resolve conflicts of interest, and promote social harmony. However, there are several reasons why ethics is
- not law. First, some actions that are illegal may not be unethical. Speeding is illegal, but one might have an ethical obligation to break the speed limit in order to transport someone to a hospital in an emergency. Second, some actions that are unethical may not be illegal. Most people would agree that lying is unethical but lying is only illegal under certain conditions,
- e.g. lying on an income tax return, lying when giving sworn testimony, etc. Third, laws can be unethical or immoral. The United States had laws permitting slavery in the 1800s but most people today would say that those laws were unethical or immoral. Although we have moral and ethical obligations to obey the law, civil disobedience can be justified when immoral or unethical laws exist.

The Importance/Goal of Moral and Civic Education

- Civic education is a discipline that deals with virtue traits rooted in values of respect and culture of tolerance to make individuals responsible and efficient member of their community.
- It teaches the values and sense of commitment that define an active and principled citizen, how to make responsible decisions, solve problems, care about others, contribute to society, and be tolerant and respectful of diversity.
- In higher educational institutions of Ethiopia, civics and ethics/moral education is given with the aim of educating students about democratic culture, ethical values and principles, supremacy of constitution, the rule of law, rights and duties of citizens.

The need to instill citizens about their rights and duties

- the State has the obligation to provide health care services because citizens have the right to access.
- Similarly, the state will be unable to meet the needs of children, the elderly or the disabled
- the state cannot protect the environment if citizens are unwilling to reduce, reuse, and recycle waste byproducts in their own homes; and attempts to create a fairer society will flounder if citizens are chronically intolerant of difference and generally lacking in what Rawls (1971) calls a sense of justice.
- In short, we need a fuller, richer and yet more subtle understanding and practice of citizenship, because what the ideal society needs and wants to be cannot be secured by coercion, but only through its members (citizens) who have a balanced understanding of rights and duties.
- Third, one should exercise his rights for the promotion of social good.
- Any such action by the State is justified. Fourth, the State being a nucleus organ needs to take care of the egal interests of all its individuals. For this reason, civics and ethics course provides to citizens to ensure that each individual become an informed citizen capable of thinking effectively as well as responsibly in carrying out their duties and observing rights.

The Need for Participant Political Culture

- According to the International Encyclopedia of the Social Sciences (1961)
- political culture is the set of attitudes, beliefs, and sentiments which give order and meaning to a political process and which provide the underlying assumptions and rules that govern behavior in the political system.
- Taylor (1999) describes political culture as the norms of conduct both of and between the various political actors operating in society, together with the concomitant expectations and understandings of the rights and responsibilities of citizens, representatives, public servants and so on. Political culture shapes what people expect of their political system, what they see as possibilities for their own action, and what rights and responsibilities the various actors are perceived to have.
- Generally, political culture defines the roles which an individual may play in the political process.
- Almond and Verba (1963) construct three political cultures: parochial cultures, subject cultures, and participant cultures.
- In parochial cultures citizens have low cognitive, affective, and evaluative orientation regarding the political systems, government powers and functions and even their privileges and duties

The Need for Relevant Knowledge, Skills and Positive Attitudes

- Relevant knowledge is a type of knowledge which is useful in dealing with a particular problem at a period of time.
- However, knowledge would remain inert knowledge unless it is functional or put into practice to achieve a certain goal.
- Still knowledge would remain infirm if the person is not equipped with right attitudes and requisite skills which are basic to enable him/her perform his/her role as a credible member of a society.
- Hence, the State in question will do better in its bid for development if most of her citizens are skillful in one field or the other and also demonstrate positive attitudes at the work place. Right attitudes are very essential ingredients needed to ensure harmony and peaceful co-existence among people.
- It is reasonable to claim that skillful manpower is a pre-requisite for every nation

The issue of fostering intercultural societies:

- civics and ethics education could move a step forward by appealing to the notion of inter-culturalism, which explicitly asserts the need for relationship, dialogue, reciprocity and interdependence.
- Beyond differences of semantics, civics and ethics education is a useful instrument not only towards tolerating or celebrating each other, but also about nurturing dynamic exchanges based on interaction, openness and effective solidarity.
- The subject helps to integrate the best traditions of multicultural and intercultural education to develop political and pedagogical strategies that contribute to overcome discrimination and to nurture genuine, inclusive dialogue among cultural groups.

The issue of inclusiveness:

- By framing a universal concept of citizenship constructed on the attributes/identities and practices of male subjects, gendered relations and the private sphere have been neglected.
- Civics and ethics as a subject is thought to nurture new and inclusive relations and practices in both public and private spaces that recognize gender differences while ensuring inclusiveness and equity.
- It should also go beyond the idea of quotas for women in formal politics, or strategies to empower women to play male politics. Hence, promoting democracy and inclusiveness in public spaces as well as in families, workplaces, unions, and other institutions become the area of focus of civics and ethics.

- Moral and Civics Education is based on and seeks to promote in students core moral, ethical, democratic, and educational values, such as:
 - Respect for life
 - Respect for reasoning
 - Fairness
 - Concern for the welfare of others
 - Respect for diversity
- Peaceful resolution of conflict

Chapter Summary

- Different authors define civic education in different ways. But

the most cited definition of civic education is

an education that studies about the rights and responsibilities of citizens of a politically organized group of people.

Ethics is a branch of philosophy that deals with the rightness and wrongness of human actions. In this regard,

Ethics is the study of morality. Whereas morality is defined as a set of personal and social values, rules, beliefs, laws, emotions, and ideologies collectively governing and arbitrating the rightness and wrongness of human actions. In higher institutions of Ethiopia,

civics and ethics is given with the aim of educating students about democratic culture, ethical values and principles, supremacy of constitution, the rule of law, rights and duties of citizens. The major goal of civics and ethics is producing good citizens, citizens who obey the law; respect the authority; contribute to society; love their country; believe in doing what is right; stand up for the right of others; tries to serve the interest of others before oneself. It is also aimed at creating a generation who has the capability to shoulder family and national responsibility.

- Thus, in conclusion, it is important to state that the normative value of ethics in life explores what is our origin as human beings.
- It takes into consideration the fact 'the unexamined life is not worth living;' to quote the ancient sage, Socrates. Without the fundamental factors of self-critique, of the ethical questioning and practical engagement, of the fundamental factors of tradition – something lived out in the present that proposes and gives its reasons – the youth would remain fragile, doubtful and sceptical. Exposure to life's experiences which is achieved beyond the classroom is risky.
- But it helps the student to become authentic, standing on one's own feet and daring the current. This is not the domain of Ethics in Higher education but the normative value of ethics and life. It is confrontation with man's real identity and the questions of contradictions of life, yet tackled beyond doubt.

- The context of a new vision for education which calls for mindset shift from reading and writing to skills acquisition with relevance for daily life and society becomes imperative.
- Ethics education is opportunity for a new value orientation. Such education ensures the training of both the teacher and the student, develops new technologies and conclusively allows a new vision, a new policy, a new market, new resources and a new system.
- The normative value of this kind of education is the emergence of a new humanity of responsible leaders driven by values and virtues and knowledgeable enough to transform their environment and serve entire humanity in a new society yearning for ethical and fair minded leaders.

Chapter Two:

Approaches to Ethics

Normative Ethics

- normative ethics, starting with the theory of obligation and then going on to the theory of moral value and, finally, to the theory of nonmoral value.
- The ultimate concern of the normative theory of obligation is to guide us in the making of decisions and judgments about actions in particular situations.
- A main concern, of course, is to guide us in our capacity as agents trying to decide what we should do in this case and in that. But we want to know more than just what we should do in situations before us.
- We are not just agents in morality; we are also spectators, advisers, instructors, judges, and critics. Still, in all of these capacities our primary question is this:
- how may or should we decide or determine what is morally right for a certain agent (oneself or another, possibly a group or a whole society) to do, or what he morally ought to do, in a certain situation?

Normative ethics;

- Offers theories or accounts of the best way to live. These theories evaluate actions in a systematic way, i.e., they may focus on outcomes or duties or motivation as a means of justifying human conduct.
- Includes ethical theories or approaches such as utilitarianism, deontology, virtue ethics, principlism, narrative ethics and feminist ethics.
- Normative ethics poses questions of the following kind:
 - Are there general principles or rules that we could follow which distinguish between right and wrong? Or:
 - Are there virtues and/or relationships that we can nurture, in order to behave well?

Teleological Ethics (Consequentialist)

- It is referred as “the end justifies the means”. It believes in purpose, ends or goals of an action,
- it stress that the consequences of an action determines the morality or immorality of a given action.
- Which means an action is judged as right or wrong, moral or immoral depending on what happens because of it.
- One may have the best intention or follow the highest moral principles but if the result, moral act is harmful, or bad it must be judged as morally or ethically wrong act.

- Teleologists have often been hedonists, identifying the good with pleasure and evil with pain, and concluding
that the right course or rule of action is that which produces at least as great a balance of pleasure over pain as any alternative would. But they may be and have sometimes been non-hedonists, identifying the good with power, knowledge, self-realization, perfection
- Deontological theories deny what teleological theories affirm. They deny that the right, the obligatory, and the morally good are wholly, whether directly or indirectly, a function of what is nonmorally good or of what promotes the greatest balance of good over evil for self, one's society, or the world as a whole.
- They assert that there are other considerations that may make an action or rule right or obligatory besides the goodness or badness of its consequences -- certain features of the act itself other than the *value* it brings into existence, for example, the fact that it keeps a promise, is just, or is commanded by God or by the state.
- Teleologists believe that there is one and only one basic or ultimate right-making characteristic, namely, the comparative value (nonmoral) of what is, probably will be, or is intended to be brought into being.
- Deontologists either deny that this characteristic is right-making at all or they insist that there are other basic or ultimate right-making characteristics as well. For them the principle of maximizing the balance of good over evil, no matter for whom, is either not a moral criterion or standard at all, or, at least, it is not the only basic or ultimate one.

- Teleologists differ on the question of whose good it is that one ought to try to promote.
- *Ethical egoism* holds that one is always to do what will promote his own greatest good -- that
an act or rule of action is right if and only if it promotes at least as great a balance of good over evil for him in the long run as any alternative would, and wrong if it does not.
- This view was held by Epicurus, Hobbes, and Nietzsche, among others.
- *Ethical universalism*, or what is usually called *utilitarianism*, takes the position that the ultimate end is the greatest general good -- that an act or rule of action is right if and only if it is, or probably is, conducive to at least as great a balance of good over evil in the universe as a whole as
any alternative would be, wrong if it is not, and obligatory if it is or probably is conducive to the greatest possible balance of good over evil in the universe. The so-called utilitarian's

Egoism: Ethical and psychological Egoism

- **Ethical Egoism**

We usually assume that moral behavior, or being ethical, has to do with not being overly concerned with oneself. In other words, selfishness is assumed to be unacceptable attitude.

Even among scholars, there is disagreement about what constitutes ethical behavior. Since very early in western intellectual history,

the view point that *humans are not built to look out for other people's interests* has surfaced regularly. Some scholars even hold that proper moral conduct consist of “*looking out for number one*,” period. These viewpoints are known as psychological egoism and ethical egoism respectively.

- **You should look after yourself**

Ethical egoist insisted that if you don't take advantage of a situation,

you are foolish. The claim that it makes good sense to look after yourself, and morality is a result of that self-interest.

If I mistreat others, they mistreat me, so I resolve to behave myself.

version of the Golden Rule (**Do un to others as you would have them do unto you**).

More formally the argument is this:

- 1 We all always seek to maximize our own self-interest (definition of psychological egoism).
- 2 If one cannot do an act, one has no obligation to do that act (ought to implies can).
- 3 Altruistic acts involve putting other people's interests ahead of our own (definition of altruism).
- 4 But, altruism contradicts psychological egoism and so is impossible (by premises 1 and 3).
- 5 altruistic acts are never morally obligatory

- The following are some method to apply the principle of ethical egoism to a particular situation.
- List the possible acts
- For each act, see how much net good it would do for you.
- Identify the act that does the most net good for you
- **Some important things to notice about ethical egoism:**

Some important things to notice about ethical egoism:

- It does not just say that, from the moral point of view, one's own welfare counts as well as that of others. Rather, it says that, from the moral point of view,
- **only one's own welfare counts, and others' does not, when one is making a moral decision about how to act.**
- Ethical egoism does not forbid one to help others, or require one to harm others. It just says that whatever moral reason you have to help others, or not harm them, must ultimately stem from the way in which helping them or not harming them helps you.
- **Ethical egoism does not say that one ought always to do what is most pleasurable, or enjoyable. It acknowledges that one's own self-interest may occasionally require pain or sacrifice.**

Psychological Egoism

an argument from human nature

- . We are all so constituted, it is said, that one always seeks one's own advantage or welfare, or always does what he thinks will give him the greatest balance of good over evil.

"self-love" is the only basic "principle" in human nature

in one set of contemporary terms, it means that "ego-satisfaction" is the final aim of all activity or that "the pleasure principle" is the basic "drive" in every individual.

- In dealing with this ethical theory;
 - That the desire for one's own good presupposes or builds upon the existence of more basic desires for food, fame, sex, etc.
 - It follows, that the object of these basic desires is not one's own welfare; it is food, fame, sex, etc., as the case may be. One's own good is not the object of all of one's desires but only of one of them, self- love.
 - in some cases the object of a basic desire is something for oneself, for example, food or the eating of food. But there is no necessity about this; the object may be something for someone else, for example, enjoying the sight of the ocean
 - As a matter of fact, there are such altruistic interests in the welfare of others (sheer malevolence, if it exists, is a desire that another experience pain for its own sake), as well as a desire to do the right as such.

Utilitarianism: Producing the best consequences

- Consider some traditional moral principles and see if they help us come to a decision. One principle often given to guide action is “Let your conscience be your guide.” Suppose your conscience tells you to give the money to the Ethiopian Coffee Club and my conscience tells me to give the money to the Ethiopian Red Cross Society (ERCS). How can we even discuss the matter? If conscience is the end of it, we’re left mute
- Another principle urged on us is “Do whatever is most loving”;
- when there is a conflict of interest? “Love is blind,” it has been said, “but reason, like marriage, is an eye-opener.” Whom should I love in the case of the disbursement of the millionaire’s money—the millionaire or the starving people?
- It’s not clear how love alone will settle anything. In fact, it is not obvious that we must always do what is most loving.
- Should we always treat our enemies in loving ways? Or is it morally permissible to feel hate for those who have purposely and unjustly harmed us, our loved ones, or other innocent people? Should the survivors of Auschwitz love Adolph Hitler? Love alone does not solve difficult moral issues.

Classic Utilitarianism

- The classical expressions of utilitarianism, though, appear in the writings of two English philosophers and social reformers Jeremy Bentham (1748–1832) and John Stuart Mill (1806–1873).
- They were the nonreligious ancestors of the twentieth-century secular humanists, optimistic about human nature and our ability to solve our problems without recourse to God.
- Engaged in a struggle for legal as well as moral reform, they were impatient with the rule-bound character of law

Jeremy Bentham: Quantity over Quality

- There are two main features of utilitarianism, both of which Bentham articulated:
- ***The consequentialist principle (or its teleological aspect):*** states that the rightness or wrongness of an act is determined by It is the end, not the means that counts; then the goodness or badness of the results that flow from it.
- ***The utility principle (or its hedonic aspect):*** states that the only thing that is good in itself is some specific type of state (for example, pleasure, happiness, welfare).

- Hedonistic utilitarianism views pleasure as the sole good and pain as the only evil.
- An act is right if it either brings about more pleasure than pain or prevents pain, and an act is wrong if it either brings about more pain than pleasure
- There is something appealing about Bentham's utilitarianism. It is simple in that there is only one principle to apply: Maximize pleasure and minimize suffering.

John Stuart Mill: Quality over Quantity

John Stuart Mill, sought to distinguish happiness from mere sensual pleasure. His version of the theory is often called eudaimonistic utilitarianism (from the Greek eudaimonia, meaning “happiness”). He defines happiness in terms of certain types of higher-

- Mill argued that the higher, or more refined, pleasures are superior to the lower ones: “
- It is better to be a human being dissatisfied than a pig satisfied; better to be Socrates dissatisfied than a fool satisfied.” Humans are the kind of creatures who require more to be truly happy. They want the lower pleasures, but they also want deep friendship, intellectual ability, culture, the ability to create and appreciate art, knowledge, and wisdom.
- Mill is clearly pushing the boundaries of the concept of “pleasure” by emphasizing higher qualities such as knowledge, intelligence, freedom, friendship, love, and health.
- In fact, one might even say that his litmus test for happiness really has little to do with actual pleasure and more to do with a non-hedonic cultivated state of mind.

Act- And Rule-Utilitarianism

- There are two classical types of utilitarianism:
- act- and rule-utilitarianism.
- act-utilitarians, such as Bentham, say that ideally we ought to apply the principle to all of the alternatives open to us at any given moment.
- Act-utilitarianism argues that an act is right if and only if it results in as much good as any available alternative.
- The alternative to act-utilitarianism is a view called rule-utilitarianism—elements of which we find in Mill's theory. :

Rule-utilitarianism

- An act is right if and only if it is required by a rule that is itself a member of a set of rules whose acceptance would lead to greater utility for society than any available alternative.
- Human beings are rule-following creatures. We learn by adhering to the rules of a given subject, whether it is speaking a language, driving a car, dancing, writing an essay, rock climbing, or cooking.
- We want to have a set of **actionguiding rules by which to live**. The act-utilitarian rule, to do the act that maximizes utility, is too general for most purposes. Often, we don't have time to decide whether lying will produce more utility than truth telling, so we need a more specific rule prescribing truthfulness that passes the test of rational scrutiny.

The Comparative Consequences Objection

- Another crucial problem with utilitarianism is that it seems to require a superhuman ability to look into the future and survey a mind-boggling array of consequences of actions. Of course, we normally do not know the long-term consequences of our actions because life is too complex and the consequences go on into the indefinite future.

The Consistency Objection to Rule-Utilitarianism

- An often-debated question about rule-utilitarianism is whether, when pushed to its logical limits, it must either become a deontological system or transform itself into act-utilitarianism. As such, it is an inconsistent theory that offers no truly independent standard for making moral judgments.
- We could always find a case where breaking the general rule would result in additional hedons without decreasing the sum of the whole.

The No-Rest Objection

- According to utilitarianism, one should always do that act that promises to promote the most utility. But there is usually an infinite set of possible acts to choose from, and even if I can be excused from considering all of them,
- I can be fairly sure that there is often a preferable act that I could be doing. For example, when I am about to go to the cinema with a friend, I should ask myself if helping the homeless in my community wouldn't promote more utility.
- When I am about to go to sleep, I should ask myself whether I could at that moment be doing something to help save the ozone layer. And, why not simply give all my assets (beyond what is absolutely necessary to keep me alive) to the poor to promote utility?
- Following utilitarianism, I should get little or no rest, and, certainly, I have no right to enjoy life when by sacrificing I can make others happier. Peter

The Publicity Objection

- It is usually thought that moral principles must be known to all so that all may freely obey the principles

The Relativism Objection

- Sometimes people accuse rule-utilitarianism of being relativistic because it seems to endorse different rules in different societies.
- In one society, it may uphold **polygamy**, whereas in our society it defends **monogamy**.
- **In a desert society**, it upholds a rule “**Don’t waste water,**” whereas in a community where water is plentiful no such rule exists. But this is not really conventional relativism because the rule is not made valid by the community’s choosing it but by the actual situation.

The Justice Objection

- The utilitarian response was that we should reconsider whether truth telling and personal integrity are values that should never be compromised.
- The situation is intensified, though, when we consider standards of justice that most of us think should never be dispensed with. Let's look at two examples, each of which highlights a different aspect of justice.
- First, imagine that a rape and murder is committed in a racially volatile community. As the sheriff of the town, you have spent a lifetime working for racial harmony. Now, just when your goal is being realized, this incident occurs.
- The crime is thought to be racially motivated, and a riot is about to break out that will very likely result in the death of several people and create long-lasting racial antagonism.

- As a second illustration, imagine that you are a **utilitarian physician** who **has five patients under your care**. One needs a heart transplant, one needs two lungs, one needs a liver, and the last two each need a kidney. Now into your office comes a healthy bachelor needing an immunization. You judge that he would make a perfect sacrifice for your five patients. Through a utility-calculus, you determine that, without a doubt, you could do the most good by injecting the healthy man with a fatal drug and then using his organs to save your five other patients.

- ***Three-Step Action Formula:***
- Utilitarianism might be construed as offering a three-step action formula for action:
- On the basis of what I know, I must project the consequences of each alternative option open to me (e.g., taking different kinds of actions or taking no action).
- Calculate how much happiness, or balance of happiness over unhappiness, is likely to be produced by anticipated consequences of each action or none.
- Select that action which, on balance, will produce the greatest amount of happiness for the greatest number of people affected

The principle of utility

- The morally right action is the one that produces the best overall consequences with regard to the utility or welfare of all the affected parties.
- **Jeremy Bentham's slogan:** The right act or policy is the one that causes 'the greatest happiness of the greatest number' – that is, maximize the total utility or welfare of the majority of all the affected parties.

Altruism

- In altruism an action is right if the consequences of that action are favorable to all except the actor. Butler argued that we have an inherent psychological capacity to show benevolence to others. This view is called *psychological altruism* and maintains that at least some of our actions are motivated by instinctive benevolence
- We can differentiate egoistic and altruistic desires in the following way: One's desire is *egoistic* if (and only if) it concerns (what one perceives to be) the benefit of oneself and not anyone else. In the contrary, one's desire is *altruistic* if (and only if) it concerns (what one perceives to be)

Deontological Ethics (Non- Consequentialist)

- What makes a 'right' act right? The utilitarian or consequentialist answer to this question is
- that it is the good outcome of an act which makes it right.
- Moral rightness or wrongness is calculated by determining the extent to which the action promotes values such as pleasure, well-being, happiness, etc. To this extent, the end justifies the means. In many respects, deontological moral theory is diametrically the opposite of utilitarianism
- It is referred as "the means justifies the end". It is coined as "**deontics**". This is a theory that the rightness or wrongness of moral action is determined, at least partly with reference to formal rules of conduct rather than consequences or result of an action.

- **Performance of One's own Duty**

- The 17th century German philosopher Samuel Pufendorf, who classified dozens of duties under three headings:

 - duties to God,

 - duties to oneself and duties to others!

- **duties towards God**

 - (1) a theoretical duty to know the existence and nature of God, and

 - (2) a practical duty to both inwardly and outwardly worship God.

- ***duties towards oneself;***

 - (1) duties of the soul

 - (2) duties of the body

- ***duties towards others.***

between absolute duties, which are universally binding on people, and conditional duties.

- ***Absolute duties are of three sorts:*** (1) avoid wronging others; (2) treat people as equals, and (3) promote the good of others.

- ***Conditional duties*** involve various types of agreements, the principal one of which is the duty is to keep one's promises.

The Divine Command Theory

- According to one view, called the divine command theory (DCT), ethical principles are simply the commands of God.
- They derive their validity from God's commanding them, and they mean "commanded by God." Without God, there would be no universally valid morality. We can analyze the DCT into three separate theses:
 - Morality (that is, rightness and wrongness) originates with God.
 - Moral rightness simply means "willed by God," and moral wrongness means "being against the will of God."
 - Because morality essentially is based on divine will, not on independently existing reasons for action, no further reasons for action are necessary.

- **Problems with the Divine Command Theory**

- There are **two** problems with the DCT that need to be faced by those who hold it.
- **DCT** would seem to make the attribution of “**goodness**” to **God** redundant.
- When we say “God is good,” we think we are ascribing a property to God;
- Our statement “God is good” merely means “God does whatever he wills to do” or “God practices what he preaches,” and the statement “God commands us to do what is good” merely is the logically empty statement “God commands us to do what God commands us to do.”
- **DCT** is that it seems to make morality into some-thing arbitrary.
If **God’s decree is the sole arbiter of right and wrong**, it would seem to be logically possible for such heinous acts as rape, killing of the innocent for the fun of it, and gratuitous cruelty to become morally good actions—if God suddenly decided to command us to do these things

Rights Theory

- A second duty-based approach to ethics is *rights theory*.
- Most generally, a "right" is a justified claim against another person's behavior - such as my right to not be harmed by you. Rights and duties are related in such a way that the rights of one person imply the duties of another person.
For example, if I have a right to payment of \$10 by Smith, then Smith has a duty to pay me \$10. This is called the correlativity of rights and duties.

The most influential early account of rights theory is that of 17th century British philosopher John Locke, who argued that the laws of nature mandate that we should not harm anyone's life, health, liberty or possessions.

For Locke, these are our natural rights, given to us by God. Following Locke, the United States Declaration of Independence authored by Thomas Jefferson recognizes three foundational rights:
life, liberty, and the pursuit of happiness.

Jefferson and others rights theorists maintained that we deduce other more specific rights from these, including the rights of property, movement, speech, and religious expression.

- There are **four** features traditionally associated with moral rights.
- **First**, rights are *natural* insofar as they are not invented or created by governments.
- **Second**, they are *universal* insofar as they do not change from country to country.
- **Third**, they are *equal* in the sense that rights are the same for all people, irrespective of gender, race, or handicap.
- **Fourth**, they are *inalienable* which means that I cannot hand over my rights to another person, such as by selling myself into slavery.

Kant's Categorical Imperative

- A Kant's duty-based theory is emphasizes a single principle of duty.

Kant agreed that we have moral duties to oneself and others, such as developing one's talents, and keeping our promises to others..”

- *A categorical imperative*, he argued, is fundamentally different from *hypothetical imperatives* that hinge on some personal desire that we have.

For example, “If you want to get a good job, then you ought to go to college.” By contrast, a categorical imperative simply mandates an action, irrespective of one's personal desires, such as “You ought to do X.”

The Principle of Universality

- **The first maxim**

states that we should choose our 'codes of conduct' only if they serve perfect / imperfect duty and are good for all.

"Act only according to that maxim whereby you can at the same time will that it should become a universal law without contradiction."

- **The Principle of Humanity as an End, Never as Merely a Means**

- **The second maxim**

states that we should not use humanity of ourselves or others as a means to an end. "Act in such a way that you treat humanity, whether in your own person or in the person of any other, never merely as a means to an end, but always at the same time as an end."

The Principle of Autonomy

- The ***third maxim*** states that we should consider ourselves to be members in the universal realm of ends. Therefore, ***every rational being must so act as if he were through his maxim always a legislating member in the universal kingdom of ends.***
- or they would not be universalizable, and hence they would not be laws of conduct at all. Thus Kant presents the notion of the hypothetical *Kingdom of Ends* of which he suggests all people should consider themselves both means and ends. We should consider our actions to be of consequence to everyone else in that our actions affect not only ourselves but that of others. Everything we do should not only be of benefit to ourselves, but benefit each other universally

Ross's Prima Facie Duties or Moral Guidelines

- A **fourth** and more recent duty-based theory is that by British philosopher W.D. Ross, which emphasizes *prima facie* duties. Sir William David Ross (15 April 1877 – 5 May 1971), usually cited as W. D. Ross, was a Scottish philosopher, known for work in ethics. The term *prima facie* means “at a first sight” or “on the surface.” By *prima facie* duties, Ross means duties that dictate what we should do when other moral factors are not considered. Stated another way, *prima facie* duties are duties that generally obligate us; that is, they ordinarily impose a moral obligation but may not in a particular case because of circumstances. An **actual duty** is the action that one ought to perform after considering and weighing all the *prima facie* duties involved.
- The term "duty" in "prima facie duty" is slightly misleading. The *prima facie* duties are understood as **guidelines**, not rules without exception. If an action does not correspond to a specific guideline, one is not necessarily violating a rule that one ought to follow. However, not following the rule one ought to follow in a particular case is failing to do one's (actual) duty. In such cases it makes sense to talk about violating a rule. The rule might be the same in words as a *prima facie* duty (minus the phrase "unless other moral considerations override"), but it would no longer be merely a guideline because it describes what one concretely should do.

Ross's list the following categories of prima facie duties is much shorter, which he believes reflects our actual moral convictions:

- ***Duties of Fidelity:*** the duty to keep promises and the obligation not to lie. Duties of fidelity are duties to keep one's promises and contracts and not to engage in deception.
- ***Duties of Reparation:*** This is a duty to make up for the injuries one has done to others. Ross describes this duty as "resting on a previous wrongful act". It is the duty to compensate others when we harm them. If, for example, I damage something that belongs to someone else, I have an obligation to make restitution.
- ***Duties of Gratitude:*** the duty to thank those who help us. Suppose, for example, an especially good friend is suddenly in need of assistance, I am duty bound to do all I can help this individual, who in the past had acted so selflessly toward me.

- ***Duties of Justice***: The duty of justice requires that one act in such a way that one distributes benefits and burdens fairly. Ross himself emphasizes the negative aspect of this duty: he says that this type of duty "rests on the fact or possibility of a distribution of pleasure or happiness (or the means thereto) that is not in accord with the merit of the persons concerned; in such cases there arises a duty to upset or prevent such a distribution". Thus the duty of justice includes the duty, insofar as possible, to prevent an unjust distribution of benefits or burdens.
- ***Duties of Beneficence***: the duty to improve the conditions of others. The duty to do good to others: to foster their health, security, wisdom, moral goodness, or happiness. This duty, says Ross, "rests upon the fact that there are other beings in the world whose condition we can make better in respect of virtue, or of intelligence, or of pleasure."
- ***Duties of Self-improvement***: The duty of self-improvement is to act so as to promote one's own good, i.e., one's own health, security, wisdom, moral goodness, virtue, intelligence and happiness.
- ***Duties of Non-maleficence***: The duty of non-injury (also known as non-maleficence) is the duty not to harm others physically or psychologically: to avoid harming their health, security, intelligence, character, or happiness. We are obliged to avoid hurting others physically, emotionally and psychologically.

Virtue Ethics

- **Virtue Ethics: Challenging the adequacy of rule-based theories**

Virtue ethics''

is a technical term in contemporary Western analytical moral philosophy, used to distinguish a normative ethical theory focused on the virtues, or moral character, from others such as deontology (or contractarianism) and consequentialism.

Imagine a case in which it is agreed by every sort of theorist that I should, say, help someone in need. A deontologist will emphasize the fact that in offering help, I will be acting in accordance with a moral rule or principle such as “Do unto others as you would be done by”; a consequentialist will point out that the consequences of helping will maximize well-being; and a virtue ethicist will emphasize the fact that providing help would be charitable or benevolent – charity and benevolence being virtues

- **The Good Character**

People have a natural capacity for good character, and it is developed through practice. The capacity does not come first--it's developed through practice.

Virtue, *arete*, or excellence is defined as a mean between two extremes of excess and defect in regard to a feeling or action as the practically wise person would determine it. The mean cannot be calculated *a priori*

- **Pleasure**

is the natural accompaniment of unimpeded activity. Pleasure, as such, is neither good nor bad.

- Even so, pleasure is something positive and its effect is to perfect the exercise of activity. Everything from playing chess to making love is improved with skill.
- Pleasure cannot be directly sought--it is the side-product of activity. It is only an element of happiness.
- The good person, the one who has attained *eudaimonia*, is the standard as to what is truly pleasant or unpleasant.

Non-Normative Ethics/Meta-ethics

- **Meta-ethics tries to answer question, such as:**
 - What does “good,” “right,” or “justice” mean?
 - What makes something good or right?
 - Is moral realism true?
 - Is morality irreducible, cognitive, or overriding?
- Do intrinsic values exist

- **Meta-ethics**, rather, concerned with questions about the following:
- **Meaning**: what is the *semantic function* of moral discourse? Is the function of moral discourse to state *facts*, or does it have some other non-fact-stating role?
- **Metaphysics**: do moral facts (or properties) exist? If so, what are they like? Are they identical or reducible to some other type of fact (or property) or are they irreducible and *sui generis*?
- **Epistemology and justification**: is there such a thing as moral knowledge? How can we know whether our moral judgements are true or false? How can we ever justify our claims to moral knowledge?
- **Phenomenology**: how are moral qualities represented in the experience of an agent making a moral judgement? Do they appear to be 'out there' in the world?
- **Moral psychology**: what can we say about the motivational state of someone making a moral judgement? What sort of connection is there between making a moral judgement and being motivated to act as that judgement prescribes?
- **Objectivity**: can moral judgements really be correct or incorrect? Can we work towards finding out the moral truth?

Cognitivism and Non-Cognitivism

- Consider a particular moral judgment, such as the judgments that murder is wrong. What sort of psychological state does this express? Some philosophers, called cognitivists
 - think that a moral judgment such as this expresses a belief. Beliefs can be true or false: they are truth-apt, or apt to be assessed in terms of truth and falsity. So cognitivists think that moral judgments are capable of being true or false.
 - On the other hand, non-cognitivists think that moral judgments express non-cognitive states such as emotions or desires. Desires and emotions are not truth-apt. So moral judgements are not capable of being true or false.
- (Note that, although it may be true that I have a desire for a pint of beer and false that I have a desire to see Ethiopia win the World Cup, this does not imply that desires themselves can be true or false.)

Strong Cognitivism: Naturalism

A *strong cognitivist* theory is one which holds that moral judgements

- (a) are apt for evaluation in terms of truth and falsity, and
- (b) can be the upshot of cognitively accessing the facts which render them true. Strong cognitivist theories can be either *naturalist* or *non-naturalist*.

According to a naturalist, a moral judgement is rendered true or false by a natural state of affairs, and it is this natural state of affairs to which a true moral judgement affords us access. But what is a natural state of affairs? G. E. Moore's characterization: “By ‘nature’, then, I do mean and have meant that which is the subject matter of the natural sciences and also of psychology.”

Strong Cognitivism: Non-Naturalism

- Non-naturalists think that moral properties are not identical to or reducible to natural properties.
- They are irreducible and *sui generis*. We will look at two types of strong cognitivist non-naturalism: Moore's ethical non-naturalism, as developed in his *Principia Ethica* (first published in 1903),
- according to which the property of moral goodness is non-natural, simple, and unanalysable; and the contemporary version of non-naturalism that has been developed by John McDowell and David Wiggins (roughly from the 1970s to the present day).
- Again, both types of non-naturalist are moral realists: they think that there really are moral facts and moral properties, and that the existence of these moral facts and instantiation of these moral properties is constitutively independent of human opinion.

Strong Cognitivism without Moral Realism: Mackie's 'Error-Theory'

- **John Mackie**

has argued that although moral judgements are apt to be true or false, and that moral judgements, if true, would afford us cognitive access to moral facts, moral judgements are in fact always *false*. This is because there simply are no moral facts or properties in the world of the sort required to render our moral judgements true: we have no plausible epistemological account of how we could access such facts and properties, and, moreover, such properties and facts would be *metaphysically queer*, unlike anything else in the universe as we know it. A moral property would have

- to be such that the mere apprehension of it by a moral agent would be sufficient to motivate that agent to act. Mackie finds this idea utterly problematic. He concludes that there are no moral properties or moral facts, so that (positive, atomic) moral judgements are uniformly false: our moral thinking involves us in a radical *error*. Because Mackie denies that there are moral facts or properties, he is not a moral realist, but a *moral antirealist*

Weak Cognitivism about Morals without Moral Realism: 'Best Opinion' Theories

- A *weak cognitivist* theory is one which holds that moral judgements
- are apt for evaluation in terms of truth and falsity, but
- cannot be the upshot of cognitive access to moral properties and states of affairs.
- Weak cognitivism thus agrees with strong cognitivism on
- (a), but disagrees on
- (b). An example of a weak cognitivist theory would be one which held that our best judgements about morals *determine* the extensions of moral predicates, rather than being based upon some faculty which *tracks, detects* or *cognitively accesses* facts about the instantiation of moral properties. (The extension of a predicate is the class of things, events or objects to which that predicate may correctly be applied.)

Non-Cognitivism

- *Non-cognitivists* deny that moral judgements are even apt to be true or false. Non-cognitivists thus disagree with both weak and strong cognitivism. We shall look at a number of arguments which the non-cognitivist uses against cognitivism. An example of such an argument is the *argument from moral psychology*.
- We shall look at three versions of non-cognitivism which give different answers to this question:
- J. Ayer's ***emotivism*** (1936), according to which moral judgements express emotions, or sentiments of approval or disapproval;
- Simon Blackburn's ***quasi-realism*** (1984), according to which moral judgements express our dispositions to form sentiments of approval or disapproval; and
- Allan Gibbard's ***norm-expressivism*** (1990), according to which our moral judgements express our acceptance of norms

- **Generally, Meta-ethics:**
- Examines the meaning of moral terms and concepts and the relationships between these concepts.
- Explores where moral values, such as 'personhood' and 'autonomy', come from.
- Considers the difference between moral values and other kinds of values.

• Examines the way in which moral claims are justified

Meta-ethics also poses questions of the following kind:

- What do we mean by the claim, 'life is sacred'?
- Are moral claims a matter of personal view, religious belief or social standard, or, are they objective in some sense?
- If they are objective, what make them so

Chapter Summary

- Ethics is one of the most important disciplines that need to be thought to the students to adopt ethical behavior with respect to good life. It promotes healthy society and fulfilling experience for individual. In the globalized era, we find that “Ethics will be one of the enablers of competitiveness.” Stressing the centrality of ethics in the human experience can be a greater favor to humankind in general, and to our society in particular, to be growing and prosper by qualities that are essentially and absolutely ethical.
- Morality Concerned about habits, customs, ways of life, especially when these are assessed as good or bad, right or wrong. Moral values help to regulate the behavior as a standard. Such values help to maintain the society and act uniformly. They bring about peace and stability. So individuals have a moral responsibility to respect and maintain the value of their society and refrain from committing things that disturb its stability and peace.

- While utilitarianism, deontology, and virtue theory have been in place in the canon of moral philosophy for centuries, they have not remained fixed and static as theories. Volumes have been written which critique elements of these theories, sharpening them for greater clarity and, attuning them more to the fullness of human living. In addition, insights into moral living come in fresh forms, breathing new life into the traditional moral canon. This is the case with contemporary ethical theories such as principlism,
- narrative ethics and feminist ethics. In these we find new insights that attempt a number of tasks: to offer developments of, and improvements on, essential features of traditional theories, to fill in the dimensions of human living that were often omitted or understated in traditional theorizing and to acknowledge that the challenges of moral development require that we move from a realm of moral abstractions to concrete situations. This allows us to see whether or how much the resources of moral theory help to guide our decision-making and moral judgments.

Chapter Three:

Ethical Decision Making and Moral Judgments

How Can We Make Ethical Decisions And Actions?

In real life conditions we may get difficulties to always do the right thing. What we often considered as right and correct might put us in difficult condition with others and affect our social relation adversely.

Individuals could give their own justification to testify that they are Right or correct! We often claim that we make right decision and actions. We regret when we make wrong decision and action.

The ethical nature of our action and decision, however, is very much dependent upon our notion of ``Good' and ``Bad, `` Right and`` wrong``. Before we see how human beings judge the morality of their actions, let raise some puzzling questions: What things are good or bad?

- There are things which we consider good or desirable for their result-for what they lead to.
- There are also things which we consider good not because of what they lead to but because of what they are in themselves:
- this are considered as worth having or perusing not merely as way of getting other things but because of their own intrinsic nature. The first kind of good is called instrumental good because the goodness of these things lies in their being instruments towards the attainment of the other things which are considered good not simply as instruments.
- The second category of good is called intrinsic good because we value these things (whatever they may turn out to be) not for what they lead to but for what they are.

- One of the key tasks of ethical reasoning, generally, is to analyze and critically consider the values we hold and the claims we make in relation to the perceived obligations that we might have towards one another.
- Applied to the processes of death and dying and the care provided at end of life, key values that arise include sanctity of life (the fact of being alive is itself deeply valued), quality of life (the fact of having positive experiences and avoiding negative experiences is considered deeply morally significant), autonomy (respecting someone's preferences in relation to where, how and when they die is, increasingly, considered to be deeply morally significant and challenging).
- A second key task of ethics is to evaluate the adequacy of reasons that we give for our actions: it considers, for example, whether the reasons offered to support a particular course of action are based on sound evidence and/or logical argument. Applied to the processes of death and dying, reasons that are evaluated might be the arguments a health professional offers in support of resuscitating an incompetent terminally-ill patient or a parent's reasons for refusing medical treatment for a severely disabled neonate.

- Moreover, ethical problems are often not as clear as other kinds of problems and resolving ethical problems as definitively is not always possible.
- The aim of ethics then, is not, despite popular opinion, to take the high moral ground and tell people what to do, but, rather, to offer tools for thinking about difficult problems.
- Good ethical thinking purposefully seeks out the grey in questions and concerns in order to acknowledge the diversity and complexity of roles, situations and circumstances that arise in human life and relationships.

Ethical Principles and Values of Moral Judgments

- The branch of philosophical study that focuses on 'ethics' is concerned with studying and/or building up a coherent set of 'rules' or principles by which people ought to live. The theoretical study of ethics is not normally something that many people would regard as being necessary in order for them to conduct their everyday activities.
- In place of systematically examined ethical frameworks, most people instead carry around a useful set of day-to-day 'rules of thumb' that influence and govern their behavior; commonly, these include rules such as 'it is wrong to steal', 'it is right to help people in need', and so on.
- But sometimes the vicissitudes and complexities of life mean that these simple rules are sometimes put to the test. Consider the idea that it is wrong to kill. Does this mean that capital punishment is wrong? Is it wrong to kill animals? Is killing in self-defence wrong? Is the termination of pregnancy wrong? Is euthanasia wrong?
- If we try to apply our everyday notions of right and wrong to these questions, straightforward answers are not always forthcoming. We need to examine these questions in more detail; and we need theoretical frameworks that can help us to analyze complex problems and to find rational, coherent solutions to those problems. Whilst some people attempt to do this work individually, for themselves, philosophers attempt to find general answers that can be used by everyone in society.

Moral intuitions and Critical Reasoning

- The study of ethics involves reasoning about our feelings. In other words, it involves making sense of and rationalising our intuitions about what is 'right' or 'good'.
- Almost all people, to a greater or lesser extent, are capable of experiencing feelings of empathy towards others. Empathy provides us with a sense of what others are feeling and may thereby allow us to identify with other people. Empathy therefore gives us what Traer (2013) refers to as our moral sentiments; and ethical reasoning about these sentiments gives us our moral principles.
- The integration of these moral sentiments and principles, Traer (2013) argues, is our conscience. Our moral conscience, then, is based on emotions, but should also be supported by reason.

Rationalisation

- Studying ethics, then, involves attempting to find valid reasons for the moral arguments that we make. Most people already have general ideas – or what philosophers call ‘intuitions’ or ‘presumptions’ – about what they think is ‘right’ or ‘wrong’.
- But a philosophical approach to ethics requires people to think critically about the moral ideas that they hold, to support or refute those ideas with convincing arguments, and to be able to articulate and explain the reasons and assumptions on which those arguments are based.
- In moral philosophy, an argument is not simply about our beliefs or opinions; instead, it is about the reasons underlying those beliefs or opinions. This means that the real value of discussing and debating ethical questions is not to ‘win the argument’ or to ‘score points’ against the other person!
- It is more important to provide carefully considered arguments to support our ideas, and to allow for rational – and deeper – understanding of the reasons underlying our beliefs, ideas and attitudes. Crucially, this requires careful listening to, analysis of and learning from the arguments that others make.

Types of reasoning

Three forms of critical reasoning

- Reasoning by analogy explains one thing by comparing it to something else that is similar, although also different. In a good analogy, the similarity outweighs the dissimilarity and is clarifying. For instance, animals are like and unlike humans, as humans are also animals. Is the similarity sufficiently strong to support the argument that we should ascribe rights to nonhuman animals as we do to humans?’
- ‘Deductive reasoning applies a principle to a situation. For instance, if every person has human rights, and you are a person, then you have human rights like every person.’
- ‘Inductive reasoning involves providing evidence to support a hypothesis. The greater the evidence for a hypothesis, the more we may rely on it.’ The fact that there is mounting evidence that the burning of fossil fuels is having a detrimental effect on global climate, for example, is used to substantiate the argument that we have a moral duty to reduce carbon emissions.

Ethics and Religious Faith

- There is another important argument that people use when making ethical arguments: religious faith. For many people, 'morality and religious faith go hand in hand'.
- Rather than relying on rational arguments, some people view actions as being right or wrong in terms of whether they are commanded by a god. Some moral philosophers do not view arguments based on religious faith as being rationally defensible. They believe that we can determine through rational reflection what is right and wrong.
- If a god commands only what is right then, logically, this makes divine commands unnecessary; we are able to know what is right or wrong without relying on any divine commandments, as we can use rational reflection.

Testing moral arguments

- Critical reasoning is about asking questions whenever anyone gives us a reason to support an argument. What kind of reasoning are they using? If they are using a principle to support their argument (deductive reasoning), then what kind of principle is it?
- Is the principle rational? If they are providing evidence to support their argument (inductive reasoning) then is the evidence reliable? Have any motives that might be behind their arguments been clarified (ie are they giving rationalisations, not reasons)? Does the conclusion drawn make sense, given the reasons they have given?
- All of these questions that we ask about peoples' arguments may seem a little onerous and off-putting. With such rigorous criteria, some people may feel that they don't want to make any argument at all, as they are bound to make mistakes in their reasoning! However, most people already use critical reasoning when they make arguments and question other people's arguments.
- We have an idea of what we think is right based on our experience (our ethical presumptions), and we explain those ideas to other people based on our feelings (intuitions) and reasons. It is important and useful to develop the ability to test your own arguments and those of others, both to address the dilemmas that occur in our personal lives, our communities and the organisations for which we work.

Three ways to test a moral argument:

- (1) Factual accuracy. The 18th century philosopher David Hume (1711—1776) argued that we should not derive an 'ought' from an 'is'. This means that we cannot say that something is wrong or right simply based on how things are. This is reasonable, but it does not mean that ethical discussion should be divorced from fact; the accuracy of the factual content of a discussion is very important.
- Consider the example — of someone who maintains that giving aid to charities working in Africa is wrong because they believe that 90% of the money donated in fact goes to paying wealthy consultants and NGO workers, and only 10% goes to alleviate poverty. If this person were shown that this was factually incorrect, and that in fact 90% of all donations were used to alleviate poverty, then their moral argument would lose its force.
- (2) Consistency. Arguments need to be consistent. One can only argue that it is morally wrong to kill one person and yet morally acceptable to kill another, if one can demonstrate that there is a morally relevant difference between the two individuals. For example, the moral argument that debts owed by poorer nations to international lenders should be cancelled. Does this therefore mean that all poor people who owe money to banks should also have their debts cancelled? If you don't think that all individual debts should be cancelled but you do think that poorer countries' debts should be cancelled, then you have to show that there is a moral difference between the two. Otherwise your arguments are inconsistent.
- (3) Good will. This one is the most difficult criterion to quantify. While arguments may be factually correct and consistent, they also need to 'exemplify good will'. This involves resorting to our intuitions and emotions, which are notoriously difficult to integrate with rigorous theoretical debate.

Thinking Ethically: A framework for Moral Decision Making

- The first step in analyzing moral issues is obvious but not always easy:

Get the facts. Some moral issues create controversies simply because we do not bother to check the facts.

This first step, although obvious is also among the most important and the most frequently overlooked.

But having the facts is not enough. Facts by themselves only tell us what is; they do not tell us what ought to be. In addition to getting the facts, resolving an ethical issue also requires an appeal to values.

Fairness and Justice Approach

- The fairness or justice approach to ethics has its roots in the teachings of the ancient Greek philosopher Aristotle who said that “equals should be treated equally and unequal’s unequally”. The basic moral question in this approach is:
- How fair is an action?
- Does it treat everyone in the same way, or does it show favoritism and discrimination?
- Depending on how well he did this, Aristotle said humans belonged to one of four categories: the virtuous, the continent, the incontinent and the vicious. Generally, this approach focuses on how fairly or unfairly our actions distribute benefits and burdens among the members of a group.
- This approach asks what is fair for all stakeholders, or people who have an interest in the outcome.” Fairness requires consistency in the way people are treated. The principle states: “Treat people the same unless there are morally relevant differences between them.”

The Common Good Approach

- This approach to ethics assumes a society comprising individuals whose own good is inextricably linked to the good of the community. Community members are bound by the pursuit of common values and goals. The common good is a notion that originated more than 2,000 years ago in the writings of Plato, Aristotle, and Cicero.
- More recently, contemporary ethicist John Rawls defined the common good as "certain general conditions that are equally to everyone's advantage." In this approach, we focus on ensuring that the social policies, social systems, institutions, and environments on which we depend are beneficial to all. Examples of goods common to all include affordable health care, effective public safety, peace among nations, a just legal system, and an unpolluted environment.
- Appeals to the common good urge us to view ourselves as members of the same community, reflecting on broad questions concerning the kind of society we want to become and how we are to achieve that society. While respecting and valuing the freedom of individuals to pursue their own goals, the common good approach challenges us also to recognize and further those goals we share in common. It presents a vision of society as a community whose members are joined in a shared pursuit of values and goals they hold in common.

The Rights Approach:

- **The Right to the Truth:** We have a right to be told the truth and to be informed about matters that significantly affect choices.
- **The Right of Privacy:** We have the right to do, believe, and say whatever we choose in our personal lives so long as we do not violate the rights of others.
- **The Right not to be injured:** We have the right not to be harmed or injured unless we freely and knowingly do something to deserve punishment or we freely and knowingly choose to risk such injuries.
- **The Right to what is agreed:** We have the right to what has been promised those with whom we have freely entered into a contract or agreement.
- In deciding whether an action is moral or immoral using this approach, we must ask, ***does the action respect the moral rights of everyone?*** Actions are wrong to the extent they violate the rights of individuals; the more serious the violation, the more wrongful the action.

Generally, in Ethical Problem Solving;

- Once facts have been ascertained, consider five questions when trying to resolve a moral issue:
- What benefits and what harms will each course of action produce, and which alternative will lead to the best overall consequences?
- What moral rights do the affected parties have, and which course of action best respects those rights?
- Which course of action treats everyone the same, except where there is a morally justifiable reason not to, and does not show favoritism or discrimination?
- Which course of action advances the common good?
- Which course of action develops moral virtues?

To Whom or What Does Morality Apply?

• Religious Morality

- Religious morality refers to a human being in relationship to a supernatural being or beings.
- In the Jewish and Christian traditions, for example, the first three of the Ten Commandments (See the figure below) pertain to this kind of morality.
- These commandments deal with a person's relationship with God, not with any other human beings.
- By violating any of these three commandments, a person could, according to this particular code of ethics, act immorally toward God without acting immorally toward anyone else.

The Ten Commandments

1. I am the Lord, Your God; do not worship false gods.
2. Do not take the name of God in vain.
3. Keep holy the Sabbath Day.
4. Honor your father and your mother.
5. Do not kill.
6. Do not commit adultery.
7. Do not steal.
8. Do not bear false witness against your neighbor.
9. Do not covet your neighbor's spouse.
10. Do not covet your neighbor's belongings.

• **Morality and Nature**

- “Morality and nature” refers to a human being in relationship to nature.
- Natural morality has been prevalent in all primitive cultures, such as that of the Native American, and in cultures of the Far East. More recently, the Western tradition has also become aware of the significance of dealing with nature in a moral manner.
- Some see nature as being valuable only for the good of humanity, but many others have come to see it as a good in itself, worthy of moral consideration. With this viewpoint there is no question about whether a Robinson Crusoe would be capable of moral or immoral actions on a desert island by himself.
- In the morality and nature aspect, he could be considered either moral or immoral, depending upon his actions toward the natural things around him.

Individual Morality

- Individual morality refers to individuals in relation to themselves and to an individual code of morality that may or may not be sanctioned by any society or religion.
- It allows for a “higher morality,” which can be found within the individual rather than beyond this world in some supernatural realm.
- A person may or may not perform some particular act, not because society, law, or religion says he may or may not, but because he himself thinks it is right or wrong from within his own conscience.

• Social Morality

- Social morality concerns a human being in relation to other human beings. It is probably the most important aspect of morality, in that it cuts across all of the other aspects and is found in more ethical systems than any of the others.
- Returning briefly to the desert-island example, most ethicists probably would state that Robinson Crusoe is incapable of any really moral or immoral action except toward himself and nature. Such action would be minimal when compared with the potential

Who is Morally/Ethically Responsible?

1

- Morality pertains to human beings and only to human beings; all else is speculation. If one wants to attribute morality to supernatural beings, one has to do so solely on **faith**.
- If one wants to hold animals or plants morally responsible for destructive acts against each other or against humans, then one has to ignore most of the evidence that science has given us concerning the instinctual behavior of such beings and the evidence of our own everyday observations.

Moral Judgments

- Finding the right course of action, choosing the right alternative, is not always simple. We can have no algorithm for judgment, since every application of a rule would itself need supplementing with further rules.
- **Onora O'Neill** argues that moral principles do not provide us with an —auto-pilot for life and that —judgment is always needed in using or following – and in flouting – rules or principles, as you have saw above. When conflicts of interest arise, the solution may require the greatest sensitivity, experience, discernment, intelligence and goodwill, and even then we may doubt whether we have acted rightly. However, in judging conduct or action we have to consider **motives, means, and consequences** and sometimes the **situation**.
- **1 Motives:** Motives, as Jesus, Kant, and others have pointed out, are basic for a determination of morality. The motive refers to the *intention* or *why an action is done*. A good motive is a prerequisite to conduct that we approve without qualification. If a good motive is present when an act, through some unforeseen factor, leads to harmful effects, we tend to disapprove less severely and to say,
- **2 Means:** Just as there may be many motives for desiring something, there may be many means for achieving it. The term *means* can be defined as an agency, instrument, or method used to attain an end. Though we expect people to use the best available means to carry out their purposes, we condemn them if their choice of means impresses us as unjust, cruel, or immoral. On rare occasions we may approve of an act when means are used that under other conditions would be condemned. However, there is a danger in proposing that any means may be used, provided the end is good, or that —the end justifies the means. Once chosen, the means become part of the general effect of an

3 Consequences:

Consequences are the effects or results of a *moral decision* based on a value. We expect the consequences of an act that we call —right to be good. Ordinarily, when people ask,

4 The Moral Situation:

A moral situation involves moral agents - human beings who act, are empowered to make *choices*, and consciously make decisions. As moral agents, demands are made on us and place us under obligations: we have both duties and rights.

We are faced with moral ***alternatives***, and we can better weigh those alternatives when we have an understanding of the ingredients of the moral situation.

What Makes an Action Moral?

The following are features that make an action moral:

A moral act involves an agent:

If something is a natural event or an action performed by animals, then it is morally neutral - it does not appear on our moral radars. Humans can be moral agents, or any creatures that can freely and thoughtfully choose its actions will count as a moral agent.

B. A moral act involves intention:

An intention here refers to our motives that are important to determine the rightness or wrongness of an action. If an action is done accidentally, it may be

C A moral act affects others:

A moral action needs not only an agent and to be deliberate but also needs to affect others (those we might call moral patients) in significant ways, that is, an action that has harmful (be it physical, psychological, emotional, or depriving others of happiness) or beneficial consequences for others.

Why Should Human Beings Be Moral?

- The question that is worth mentioning at this point is —Why should human beings be moral? Another way of putting the problem is as follows:

Is there any clear foundation or basis for morality - can any reasons be found for human beings to be good and do right acts rather than be bad and do wrong acts? Let us assume for the moment that there is no supernatural morality and see if we can find any other reasons why people should be moral.

- **Argument from Enlightened Self-Interest**

One can certainly argue on a basis of enlightened self-interest that it is, at the very least, generally better to be good rather than bad and to create a world and society that is good rather than one that is bad. As a matter of fact, self-interest is the sole basis of one ethical theory, ethical egoism. However, it is not being suggested at this point that one ought to pursue one's own self-interest.

Rather, an argument is being presented that if everyone tried to do and be good and tried to avoid and prevent bad, it would be in everyone's self-interest. For example, if within a group of people no one killed, stole, lied, or cheated,

then each member of the group would benefit. An individual member of the group could say, —it's in my self-interest to do good rather than bad because I stand to benefit if I do and also because I could be ostracized or punished if I don't.‖ Therefore, even though it is not airtight, the argument from enlightened self-interest is compelling.

Argument from Tradition and Law

Related to the foregoing argument is the argument from tradition and law. This argument suggests that because traditions and laws, established over a long period of time,

govern the behavior of human beings, and because these traditions and laws urge human beings to be moral rather than immoral, there are good reasons for being so

Common Human Needs

Are there any other reasons we can give as to why human beings should be moral? If we examine human nature as empirically and rationally as we can, we discover that all human beings have many needs, desires, goals, and objectives in common.

For example, people generally seem to need friendship, love, happiness, freedom, peace, creativity, and stability in their lives, not only for themselves but for others, too. It doesn't take much further examination to discover that in order to satisfy these needs, people must establish and follow moral principles that encourage them to cooperate with one another and that free them from fear that they will lose their lives, be mutilated, or be stolen from, lied to, cheated, severely restricted, or imprisoned.

- Why be moral?” Among the more common answers are these:
- Behaving morally is a matter of self-respect.
- People won't like us if we behave immorally.
- Society punishes immoral behavior.
- God tells us to be moral.
- There are two distinct components to the question “Why be moral?”
 - Why does society need moral rules?
 - Why should I be moral?

- the five social benefits of establishing and following moral rules accomplish the following:
 - Keep society from falling apart.
 - Reduce human suffering.
 - Promote human flourishing.
 - Resolve conflicts of interest in just and orderly ways.
 - Assign praise and blame, reward and punishment, and guilt.
- (“Why should I be moral?”) Is more complicated as the game Cooperate or Cheat shows. Ultimately, I should be moral because, by occasionally allowing some disadvantage for myself,

I may obtain an overall, long-term advantage. Even when it seems as though I can break moral rules without getting caught,

I still need to consistently follow them because, although an individual moral act may sometimes be at odds with my self-interest, the complete moral form of life in which the act is rooted is not against my self-interest.

Chapter Summary

- Ethical reasoning ability is considered vitally important in the shared concepts and principles that guide common ethical issues.

Ethical theories and principles are the foundations of ethical analysis because they are the viewpoints from which guidance can be obtained along the pathway to a decision.

- A person making an ethical decision needs a procedure to follow to insure that s/he makes her/his decision with rationality and respect--a decision procedure that can insure that s/he has considered all the relevant factors and have taken into account the interests of others as well as her/himself.
- Thus one has to develop a habit of pursuing justice or a disposition to be just if one wants to be a just person.

- What Aristotle means by saying this is that moral practice is a very important factor in being a moral person. One cannot have a moral character or become a moral person if one does not constantly practice to be moral, even though one might have correct moral ideas. This is just like a pianist who would not be a good pianist if she did not practice regularly even though she knows in her mind how to play the piano.
- One often has to give up some benefits for morality and one would not do so or at least would not be willing to do so if one did not know why one should be moral or why it is good to be moral. This is like taking medicine. Nobody is willing to take medicine not knowing what is good about it.
- But one would if one knew that it would promote health. What Aristotle wishes to bring out is the importance of moral theory that shows the significance or the good of morality. The focus is on why one should be moral and what the moral principles that one should observe are.

Chapter Four:

State, Government and Citizenship

Defining State

The term 'state' has been used to refer to a bewildering range of things: a collection of institutions, a territorial unit, a philosophical idea, an instrument of coercion

- from 1 an idealist perspective,
2 a functionalist perspective,
3 an organizational perspective and
4 an international perspective.

The idealist approach to the state is most clearly reflected in the writings of Hegel.

- **Hegel** conceived of the state as an ethical community underpinned by mutual sympathy – ‘universal altruism
- **Functionalist approaches**
 - The central function of the state is invariably seen as the maintenance of social order
- the state being defined as that set of institutions that uphold order and deliver social stability.
 - who have been inclined to see the state as a mechanism through which class conflict is ameliorated to ensure the long-term survival of the capitalist system.

The organizational view

- defines the state as the apparatus of government in its broadest sense; that is, as that set of institutions that are recognizably 'public', in that they are responsible for the collective organization of social existence and are funded at the public's expense.
- The virtue of this definition is that it distinguishes clearly between the state and civil society.
- The state comprises the various institutions of government: the bureaucracy, the military, the police, the courts, and the social security system and so on; it can be identified with the entire 'body politic'
- The organizational approach allows us to talk about 'rolling forward' or 'rolling back' the state, in the sense of expanding or contracting the responsibilities of the state, and enlarging or diminishing its institutional machinery.

- **The international approach**
- the international view deals with the state's outward-looking face, its relations with other states and, therefore, its ability to provide protection against external attack.
- The classic definition of the state in international law is found in the Montevideo Convention on the Rights and Duties of the State
- **Population:** Since state is a human association, the first essential element that constitutes it is the people. How much people constitute state? No exact number can be given to such a question. The fact is that the states of the world vary in terms of demographic strength.

Defined Territory:

- There can be no state without a territory of its own. The territory of a state includes land, water, and airspace.
- The territorial authority of a state also extends to ships on high seas under its flag as well as its embassies and legations/diplomat's residence in foreign lands.
- It is also possible that states may be in the form of islands as Indonesia, Philippines, and Japan. It is, however, certain that the boundary lines of a state must be well marked out.
- This can be done either by the geographical make up in the form of division by the seas, rivers, mountains, thick forests, deserts, etc., or it may be done by creating artificial divisions in the form of digging trenches or fixing pointed wire fencing.

Government

- Government is said to be the soul of the state. It implements the will of the community. It protects the people against conditions of insecurity.
- If state is regarded as the first condition of a civilized life, it is due to the existence of a government that maintain law and order
- The government of a state should be so organized that it enforces law so as to maintain the conditions of peace and security.
- The form of government may be monarchical, aristocratic, oligarchic, democratic, or dictatorial and the like, what really needed is that
- if there is no government, there is anarchy and the state is at an end.

• Sovereignty:

- As already pointed out, sovereignty is the fourth essential attribute of the concept state. It is the highest power of the state that distinguishes it from all other associations of human beings. Sovereignty
- Internal and External. Internal Sovereignty implies that inside the state there can be no other authority that may claim equality with it. The state is the final source of all laws internally.

• Recognition

As the fifth essential attribute of the state. This is because, for a political unit to be accepted as a state with an 'international personality' of its own, it must be recognized as such by a significant portion of the international community.

- the desire of coming in to effect of the legal and political results of recognition. Likewise, for a government of a state to be formally to act on its behalf, the government must be recognized as legitimate government of the state by other governments.

Rival Theories of State

- There are various rival theories of the state, each of which offers a different account of its origins, development and impact on society.

1 The Pluralist State

- The pluralist theory of the state has a very clear liberal lineage. It stems from the belief that the state acts as an 'umpire' or 'referee' in society.
- , the civil service and the military being seen as independent actors in their own right, rather than as elements of a broader state machine.
- Nevertheless, this approach is possible only because it is based on underlying, and often unacknowledged, assumptions about state neutrality. The state can be ignored only because it is seen as an **impartial arbiter** or **referee** that can be bent to the will of the government of the day.

2 The Capitalist State

- The Marxist notion of a capitalist state offers a clear alternative to the pluralist image of the state as a neutral arbiter or umpire.
- Marxists have typically argued that the state cannot be understood separately from the economic structure of society.
- This view has usually been understood in terms of the classic formulation that the state is nothing but an instrument of class oppression:
- the state emerges out of, and in a sense reflects, the class system. Nevertheless, a rich debate has taken place within Marxist theory in recent years that has moved the Marxist theory of the state a long way from this classic formulation. In many ways, the scope to revise Marxist attitudes towards the state stems from ambiguities that can be found in Marx's own writings.

The Leviathan State

- The image of the state as a 'leviathan' (in effect, a self-serving monster intent on expansion and aggrandizement) is one associated in modern politics with the New Right.
- Such a view is rooted in early or classical liberalism and, in particular, a commitment to a radical form of individualism.
- The New Right, or at least its neoliberal wing, is distinguished by a strong antipathy towards state intervention in economic and social life, born out of the belief that the state is parasitic growth that threatens both individual liberty and economic security.
- The central feature of this view is that the state pursues interests that are separate from those of society (setting it apart from Marxism), and that those interests demand an unrelenting growth in the role or responsibilities of the state itself

- While Marxists argue that the state reflects broader class and other social interests, the New Right portrays the state as an independent or autonomous entity that pursues its own interests.
- In this view, bureaucratic self-interest invariably supports 'big' government and state intervention, because this leads to an enlargement of the bureaucracy itself, which helps to ensure job security, improve pay, open up promotion prospects and enhance the status of public officials.
- This image of self-seeking bureaucrats is plainly at odds with the pluralist notion of a state machine

The Patriarchal State

- Modern thinking about the state must, finally, take account of the implications of feminist theory.
- Moreover, feminists have usually not regarded the nature of state power as a central political issue, preferring instead to concentrate on the deeper structure of male power centered on institutions such as the family and the economic system.

for instance, that the idea that the state exercises a monopoly of legitimate violence is compromised by the routine use of violence and intimidation in family and domestic life.

- Whereas instrumentalist arguments focus on the personnel of the state, and particularly the state elite, structuralism arguments tend to emphasize the degree to which state institutions are embedded in a wider patriarchal system.
- Welfare may uphold patriarchy by bringing about a transition from private dependence (in which women as 'home makers' are dependent on men as 'breadwinners')
- to a system of public dependence in which women are increasingly controlled by the institutions of the extended state.

The Role of the State

- Contrasting interpretations of state power have clear implications for the desirable role or responsibilities of the state.
- Even revolutionary socialists, inspired by the Leninist slogan 'smash the state', have accepted the need for a temporary proletarian state to preside over the transition from capitalism to communism, in the form of the 'dictatorship of the proletariat'.
- Nevertheless, there is profound disagreement about the exact role the state should play, and therefore about the proper balance between the state and civil society.

Among the different state forms that have developed are the following:

- Minimal states
- Developmental states
- Social-democratic states
- Collectivized states
- Totalitarian states
- Religious states

Minimal States

- The minimal state is the ideal of classical liberals, whose aim is to ensure that individuals enjoy the widest possible realm of freedom.
- This view is rooted in social-contract theory, but it nevertheless advances an essentially 'negative' view of the state.
- From this perspective, the value of the state is that it has the capacity to constrain human behavior and thus to prevent individuals encroaching on the rights and liberties of others.
- The state is merely a protective body, its core function being to provide a framework of peace and social order within which citizens can conduct their lives as they think best..
- The institutional apparatus of a minimal state is thus limited to a police force, a court system and a military of some kind.

Developmental States

- The best historical examples of minimal states were those in countries such as the UK and the USA during the period of early industrialization in the nineteenth century.
- As a general rule, however, the later a country industrializes, the more extensive will be its state's economic role. In Japan and Germany
- A developmental state is one that intervenes in economic life with the specific purpose of promoting industrial growth and economic development.
- The classic example of a developmental state is Japan. During the Meiji Period (1868–1912), the Japanese state forged a close relationship with the Zaibutsu,
- the great family-run business empires that dominated the Japanese economy up until World War II. Since 1945,

Social Democratic (Welfare) States

- social-democratic states intervene with a view to bringing about broader social restructuring, usually in accordance with principles such as fairness, equality and social justice.
- In countries such as Austria and Sweden, state intervention has been guided by both developmental and social democratic priorities.
- The key to understanding the social-democratic state is that there is a shift from a 'negative' view of the state, which sees it as little more than a necessary evil, to a positive view of the state,.
- The social-democratic state is thus the ideal of both modern liberals and democratic socialists.

Collectivized States

- collectivized states bring the entirety of economic life under state control.
- The best examples of such states were in orthodox communist countries such as the **USSR** and throughout **Eastern Europe**.
- These sought to abolish private enterprise altogether, and set up centrally planned economies administered by a network of economic ministries and planning committees. So-called 'command economies' were therefore established that were organized through a system of 'directive' planning that was ultimately controlled by the highest organs of the communist party.
- The justification for state collectivization stems from a fundamental socialist preference for common ownership over private property. However, the use of the state to attain this goal suggests a more positive attitude to state power than that outlined in the classical writings of Marx and Engels (1820–95).

Totalitarian States

- The most extreme and extensive form of interventionism is found in totalitarian states.
- The essence of totalitarianism is the construction of an all-embracing state, the influence of which penetrates every aspect of human existence.
- The central pillars of such regimes are a comprehensive process of surveillance and terroristic policing, and a pervasive system of ideological manipulation and
- . In this sense, totalitarian states effectively extinguish civil society and abolish the private sphere of life altogether.

Religious States

- a religious state is a contradiction in terms.
- The modern state emerged largely through the triumph of civil authority over religious authority, religion increasingly being confined to the private
- through a separation between church and state.
- In the **USA**, the secular nature of the state was enshrined in the First Amendment of the constitution,
- which guarantees that freedom of worship shall not be abridged, while
- in **France** the separation of church and state has been maintained through a strict emphasis on the principle of *laïcité*.
- In countries such as **Norway, Denmark and the UK**, 'established' or state religions have developed, although the privileges
- these religions enjoy stop well short of theocratic rule, and their political influence has generally been restricted by a high level of social secularization.

Understanding Government

• What is Government?

- In its broadest sense, to govern means **to rule or control others**. Government can therefore be taken to include any mechanism through which ordered rule is maintained,.
It is a **body or organ that administers a country and main organization dealing with affairs of the whole country**.
Thus, government is one of the most essential components and also an administrative wing of the state.
- **political organization comprising individuals and institutions authorized to formulate public policies and conduct affairs of state..**
- Thus, government applies both to the governments of national states,
- **for instance the federal government of Ethiopia and to the governments of subdivisions of national states such as the regional states, provinces, and municipal governments, etc.**

- **Authority:**

In politics, the word authority implies the ability to compel obedience.

It can simply be defined as 'legitimate power.' While power is the ability to influence the behavior of others, authority is the right to do so.

Authority is therefore, based on an acknowledged duty to obey rather than on any form of coercion or manipulation.

Thus, authority is the legitimacy, justification and right to exercise that power.

Authority can be expressed as naked force and terror as was the case in many

- **Legitimacy:**

broadly means rightfulness. Thus, legitimacy is the attribute of government that prompts the governed to comply willingly with its authority.

It confers on an order or commands an authoritative or binding character, thus transforming power in to authority. Thus, legitimacy is the popular acceptance of a governing regime or law as an authority

• Purposes and Functions of Government

the main purpose of the state is to protect rights and to preserve justice.

There are several ways to conceive the differences between the different political views.

A lot of institutions can be said to exist only because the government provides the framework for their existence; for instance,

Marxist argue that the institution of private property only exists due to government.

Mostly, the constitutions of various countries codify views to the purposes, powers, and forms of their governments, but they tend to do so in rather vague terms

In general, various countries have translated vague talk about the purposes of their governments in to particular state laws, bureaucracies, enforcement actions, etc.

- The major purposes and functions of government include,
- **Self-Preservation:**
- **Distribution and Regulation of Resources:**
- **Management of Conflicts:**
- **Protection of Rights of Citizens:**
- **Protection of Property:**
- **Implementations of Moral Conditions**
- **Provision of Goods and Services:**

Understanding Citizenship

- **Defining Citizenship**

- *i) **Citizenship as a Status of Rights:***

The mere fact of being a citizen makes the person a creditor of a series of rights.

Each right is often pursued in specific institutional forums: legal/civil rights are mainly exercised in the courts;

political rights are used in voting booths, legislatures and street protests; social rights are often activated or disputed in government buildings.

- Citizenship as a status accords a range of rights and obligations.
- for instance, discovered four components of rights known as
 1. liberty (privilege),
 2. claim,
 3. power and
 4. immunity.
- ***a) Liberty Right:***

is a freedom given for the right-holder to do something and there are no obligations on other parties to do or not to do anything to aid the bearer to enjoy such rights.

- ***b) Claim Rights:***

are the inverse of liberty rights since it entails responsibility upon another person or body.

The duty bearer has to accomplish something that is indispensable for right holders to enjoy the claim rights.

- Liberty and claim rights termed as primary rules, rules requiring that people perform or refrain from doing particular action

- ***c) Powers Rights:***

- are rights regarding the modification of first-order rights.
- They are cooperative controls that are imposed on others.

- ***Immunity Rights:***
- Immunity rights entail the absence of a power in other party to alter the right-holder's normative situation in some way.
- ***Membership and Identity:***
- Citizenship is associated with membership of a political community, which implies integration into that community with a specific identity that is common to all members who belongs to it.
- The criteria for membership have been linked to shared territory, common culture, ethnic characteristics, history, etc.

- ***Participation:***
- Participation occupies a key position in citizenship. Nonetheless, individuals differ in what approaches they find important –
- some people focus on their private affairs while others actively participate in the life of the society, including politics.
- There are two approaches in this regard; **minimalists** and **maximalists**.
- ***Inclusion and Exclusion:***
- All individuals living in a particular state do not necessarily mean that all are citizens.
- For instance, there are non-citizens visiting, working and living in Ethiopia branded as foreigners/aliens.
- Foreigners have the likelihood of staying in the territorial administration of Ethiopia as far as they have authorized visas.

Theorizing Citizenship

- **Citizenship** is not an eternal essence rather a cultural artifact mold by people through time and that is why the notion of citizenship and the meaning attached to it changes with the change in political thoughts, ideologies, policies and government.
- other States acknowledge government intervention in the market. Besides, all citizenship rights haven't got institutional recognition at the same period.
- Citizenship obligations vary too, ranging from States where military service is required (like Eritrea and North Korea)
- to those states (including Ethiopia) where every citizen, under normal circumstances, is not obliged to take military trainings or serve.
- As a result, various citizenship theories emerge out of such historical trajectories.

Citizenship in Liberal Thought

- Liberal theory of citizenship begins with the individual person (the self).
- Hence, in liberalism the primary political unit as well as the initial focus of all fundamental political inquiry is the individual person.
- Liberals insist that individuals should be free to decide on their own conception of the good life, and applaud the liberation of individuals from any ascribed or inherited status. Advocators of this though argue that individual citizens act rationally, corresponding to the constitutions and laws of the State, to advance their own interests.
- **John Locke (1660)**, one among the influential early expositors of liberal theory, viewed individuals as endowed with reasoning skills, through which they can discern and act upon the dictates of divinely given natural law.

Critics of Liberal Theory of Citizenship

- First, how can individuals be/are prevented from destroying each other and from destroying the basis of their mutually beneficial interaction?
- Second, liberalists affirmatively valorize the privatization of personality, commitment, and activity. Hence, the problem has to do with is the ways in which individuals and their ideas are framed.
- Third, as we have seen in the above, individuals have absolute freedom either to actively engage in politics or ignore at all.

Deducing from this, the citizens do not only have the right to participate in the political affairs of their country but also the right not to engage in it and then retreat into their private pursuits if they wish..

- Fourth, liberalists justify that inequalities arise out of differences in individual talents, values, and choices – differences, moreover, that the State cannot seek to efface without endangering citizens' liberties.
- Finally, liberalism posits a State that maintains substantial normative neutrality. In this conception, the liberal State should neither choose among competing visions of the good society nor place its thumb on the scales in other ways, such as redistributive policies, that favor particular visions.

Citizenship in Communitarian Thought

- **Communitarianism** is as an approach emphasizes on the importance of society in articulating the good.
- The communitarian (also known as the nationalist) model argue that the identity of citizens cannot be understood outside the territory in which they live,
- All in all, the two defining features of communitarian perspective are: first, no individual is entirely self-created; instead the citizen and his/her identity is deeply constructed by the society where he/she is a member.
- Newcomers such as children and immigrants to a society must assimilate themselves in order to participate in community activities. Only when an individual successfully assimilates can the society achieve its common goals and become effective.

Citizenship in Republican Thought

- Republican citizenship theory put emphasis on both individual and group rights. Means republican thought attempts to incorporate the liberal notion of the self-interested individual within the communitarian framework of egalitarian and community belonging. Like communitarian thought, it emphasizes on what bind citizens together in to a particular community. Citizenship should be understood as a common civic identity, shaped by a common public culture.
- It requires citizens to bring together the facets of their individual lives as best they can and helps them to find unity in the midst of diversity. However, republicans don't pressurize individuals to surrender their particular identities like the communitarian thought. Instead, it is underpinned by a concern with individual obligation to participate in communal affairs

- Republican citizenship has been criticized by scholars who advocate multicultural and other approaches of citizenship.
- The first is that the republican conception of citizenship is no longer realistic.
- Republican citizenship is an irredeemably nostalgic ideal in this age of globalization

Modes/Ways of Acquiring and Loosing Citizenship

- Citizenship right was one of the rights guaranteed to individuals by the Universal Declaration of Human Rights adopted in 1948. According to Article 15 of the declaration,
- “everyone has a right to a nationality” and that “no one shall be arbitrarily deprived of his nationality.” Hence, in the following sections we will discuss the ways of acquiring and loosing citizenship.

- ***Citizenship from birth/of Origin***: individuals can get citizenship status of a particular State either because he/she is born in the territorial administration of that or his/her mother and/or father are citizens of the State in question.
- That is, there are two principles of citizenship from birth commonly known **as *Jus Soli* (law/right of the soil)** and ***Jus Sanguinis* (law/right of blood)**.
- Whereas *Jus Soli* is a principle whereby an individual is permitted to obtain citizenship status of a particular State because he/she was born in the territorial administration of that country,
- *Jus Sanguinis* is a norm where citizenship acquired claiming one's parents citizenship status
- ***Citizenship by Naturalization/Law***:
is the legal process by which foreigners become citizens of another country. The common sub-principles of acquiring citizenship through naturalization are the following.
Political case (secession, merger and subjugation),
grant on application,
marriage, legitimatization/adoption, reintegration/restoration.

The Modes of Acquiring Ethiopian Citizenship

- Before the 1930, there wasn't officially inscribed legal document that deals with citizenship. But in 1930 Ethiopia adopted a legal document named as "*Ethiopian Nationality Law*". Recently, this nationality law has replaced by another legal document called "*Ethiopian Nationality Proclamation NO. 378/2003*" which was adopted in 2003 by the House of People's Representatives.
- This proclamation is enacted in accordance to article 6 and 33 of the 1995 FDRE constitution and affirmed that a person can acquire Ethiopian citizenship either by birth or naturalization. Now, let's discuss the modes of acquiring Ethiopian citizenship included in the 2003 nationality proclamation

- ***Acquisition by Descent:*** the 1930 Ethiopian nationality law asserted that “any person born in Ethiopia or abroad, whose father or mother is Ethiopian, is an Ethiopian subject.” In its Article 6(1), the 1995 FDRE constitution stated that “any person of either sex shall be an Ethiopian national where both or either parent is Ethiopian
- ***Acquisition by Law (Naturalization):*** Article 6(2) of the 1995 FDRE constitution also avers that aliens can get Ethiopian citizenship

Grant on Application (registration

Cases of Marriage

Cases of Adoption (Legitimizing): this process whereby an illegitimate child get citizenship status of his/her caretaker’s nationality.

Citizenship by Special Cases: as it is labeled in Article 8, an alien who has made an outstanding contribution in the interest of Ethiopia may be conferred with Ethiopian nationality by law without undergoing the pre-conditions

Re-Admission to Ethiopian Nationality (Reintegration/Restoration): this is a process by which a person acquires his/her lost citizenship

Dual Citizenship

- Dual citizenship is the condition of being a citizen of two nations. Of course, a person may acquire more than two States which is called multiple citizenship.
- Duality/multiplicity arises because of the clash among the *Jus Soli*, *Jus Sanguini* and naturalization. For example, a baby born to a French family visiting the United States would acquire U.S. citizenship by *Jus Soli* and French citizenship by *Jus Sanguinis*.
- A child born from a mother and father of two different countries could acquire dual citizenship through decent. Besides, on the one hand, a State may allow its naturalized citizens to keep their original citizenship, and on the other, a State may refuse its citizen to revoke his/her citizenship for various reasons which are cause for dual/multiple citizenship.
- People who declared that they no longer were citizens of such a country and became naturalized in another still would be claimed as citizens by the original nation

Ways of Loosing Citizenship

- **Deprivation** is an involuntary loss of citizenship which arises while government authorities or court take a decision to nullify an individual's citizenship
- **Lapse/expiration** is another way of losing citizenship which is not applicable to Ethiopia. Lapse is a mode whereby a person loses his/her citizenship because of his/her permanent residence or long term residence abroad beyond the number of years permitted by the country in question.
- **Renunciation** is the voluntary way of losing citizenship. The UDHR (1948) guarantees the right of a person to change his/her nationality. Loss of citizenship is voluntary only if it is intended and initiated by the individual concerned.
- **Substitution:** citizenship may be lost when the original citizenship is substituted by another state, where it is acquired through naturalization. On the other side, this may also take place when a particular territory is annexed by another state;
- **Statelessness** Statelessness is the condition of having citizenship of any country and with no government from which to ask protection. According to the international law, stateless person is a person who is not considered as a national by any state under the operation of its law

Chapter Summary

- The chapter tries to present the basic notions of state, government and citizenship.
- **State** is an institutions created to ease the complex relationships and interactions among individuals and groups.
- **Government** is the administrative wind of that institution which is empowered to take care of the business of the state.
- **Citizenship** refers to the rules regulating the legal/formal relation between the State and the individual with respect to the acquisition and loss of a given country's nationality.

Chapter Five:

Constitution, Democracy and Human Rights

Constitution and Constitutionalism

‘constitution’ is used mainly in many senses-
constitution of a body, constitution of trade union,
constitution of political party

Every state must have constitution of its own and that its
government must be organised and conducted

according to the rules of the constitution so that the
people must have a rule of law, it constitutes the case
of constitutionalism.

Peculiar Features of Constitution

- With a few exceptions, all constitutions contain some common elements.
- From **Magna Carta of 1215** to today, constitutional documents and traditions take the general form of a contract or an agreement between the ruled and the rulers..
- **The following are some of the distinctive features of a constitution.**
- **A. Generality:** a constitution provides the general principle of a state and carry on foundation and sets out general framework of the law and the government.
- **Permanency:** unlike laws constitution is made for undefined period of time. That means constitution serve for a long lap of ages. It is purposely made to be stable and permanent

- **Supremacy:** They are supreme laws, taking precedence over all others, and defining how all the others should be made
- **Codified document:** Constitutions are written down; often in a single document that presents the constitution in a systematic manner
- **Allocation of powers:** Constitutions outline the proper relations between institutions and offices of the state, and between government and citizens

Major Purposes and Functions of Constitution

- **It serves as a framework for Government**
- **It Limits the Powers of Government**
- **It protects individual and collective rights of citizens**
- **It serves as the Supreme (Highest) Law of a Country**
- **It provides Government legitimacy /stability**
- **Constitution Blue Prints for establishing Values and Goals:**

Classification of Constitutions

- Constitutions are classified into different categories using different criteria.
- For instance, taking the criteria, form, amendment procedure and degree of implementation/practice,
- constitutions can be classified into the following categories
 - **Constitution based on form**
 - 1 written and unwritten constitutions
 - **Constitution based on complexity of amending process**
 - 2 as rigid and flexible

- **Constitution based on degree of practice**

- 1 effective and

- 2 Nominal Constitution of State.

Based on the kind of state structure

- 1 unitary and

- 2 federal constitution respectively

The Constitutional Experience of Ethiopia: Pre and Post 1931

- **Traditional Constitution (Pre- 1931)**

Kebrä Nagast,

the Fatha Nagast and serate mengest

The 1931 First Written Constitution

With promulgation of first written form of constitution on July 16, 1931 by Emperor Haile Selassie, the era of unwritten form of constitution came to an end.

The constitution reinforced the traditional position of the emperor as '*Siyume Egziabiher, Niguse Negast Za Ethiopia*' which literally means:

Elect of God, King of Kings of Ethiopia' but on the other marked the end of the role of the nobility or at least the gradual reduction of their role in local leadership, the traditional check against the power of the king of kings, to insignificance.

- Internally, the 1931 constitution was intended to provide a legal framework for the suppression of the powerful traditional nobilities to the emperor. The emperor has a deep interest of centralizing the state power in the internal politics of the country.
- This was effectively done by absolutist nature of the constitution. It was designed to unify and centralize all state power in the hands of the monarch. This also marked the beginning of the culmination of the struggle for centralization, which began with the attempt at unification by emperors during the 19th century and reached its consolidation under the absolutist rule of Emperor Haile Selassie to be further reinforced by the military.
- The consequence was the alienation of the bulk of the regional actors leading to the center- periphery polemics

The Revised Constitution of 1955

- When the emperor was restored to the throne by the British in 1941, he used their military and administrative assistance to bolster his own authority against what was left of the Church leadership and the traditional aristocracy.

Moreover, it was surrounded by African colonies which were rapidly gaining their independence and left by the departing colonialists with varying forms of democratic institutions.

- There were constellations of social and political events that urged the revision of the 1931 constitution.
- The federation of Eritrea with Ethiopia led to the addition of two new documents in to the Ethiopia legal system.
- These were the federal act and the Eritrean constitution.
- The federal act was a document that specified the terms of agreements for the federation between Eritrea and Ethiopia.
- The Eritrean were established their own constitution with the support of UN.

The 1987 Constitution of People's Democratic Republic Ethiopia (PDRE)

- Immediately after came to power, the Dergue setup the Provisional Military Administrative Council (PMAC) type of temporary government.
- The PMAC presented itself for elections through a new party- the Workers' Party of Ethiopia. The party became the vanguard communist party.
- The establishment of the Dergue inevitably brought profound changes in the country. After coming to power the Dergue issued a series of decrees and proclamations that was used as legal rules until the adoption of 1987 constitution.

In the Article 3, state would control key production, distribution and service enterprises, which legalized the massive nationalization of private businesses after the government came to power in 1974.

However, these, decrees and proclamations cannot be given a constitutional status because it does not touch basic constitutional issues. This may lead us to the conclusion that the time from 1974-1987 was a period of constitutional vacuum in Ethiopia.

- Though it was late, during the Dergue regime a new constitution was adopted in 1987. The regime facilitated the adoption of a new constitution, through a constitutional commission, which was different in its nature form the constitutions of its predecessors.

- The People's Democratic Republic Ethiopia constitution (1987) was different from the 1931 and the 1955 imperial constitutions in that constitution:
- State the political power and sovereignty were declared to be the preserve of the working people of Ethiopia.
- recognized the different cultural identities and the equality of Nation and Nationalities;
- Introduced a party system by giving recognition to the workers party of Ethiopia. Thus, leading to a transition from a none party system to a single party system;
- aimed at the principles of Marxist and Leninist ideology;
- Aimed at giving power to the peoples so that they exercise through referendum, local and national assembly.
- Practically, however, the 1987 constitution was not different from the 1931 and 1955 constitutions

The 1995 (FDRE) Constitution

- The FDRE constitution has a wider coverage of both human and democratic rights. Of the total 106 articles of the constitution just about one third (approximately 33 articles) is devoted to the discussion of rights..
- The 1995 Constitution has some salient features. Getahun (2007: 79) mentioned the “introduction of a federal form of governance and the assignment of the competence of determining constitutionality to the second chamber of the parliament” among the other things.
- democracy, development, fundamental rights and freedoms, equality and non-discrimination, sustainable peace and affirmative action in its preamble part.
- In the second chapter, the Constitution gives recognition to five fundamental principles; to be precise the principles of popular sovereignty (art. 8), constitutionalism and constitutional supremacy (art. 9), sanctity of human rights (art. 10), secularism (art. 11) and accountability and transparency of government (Art.12).

Democracy and Democratization

- **Values and Principles of Democracy**

Democracy is a popular political notion in today's world, fair and free elections are the prerequisite of democracy and rule of the law,

The respect of fundamental freedom and fundamental rights, elections, citizen's participation, equality, rule of law,

- separation of powers, democratic pluralism, and multi-party political system are principles of democracy.
- Hence, democracy is more than just a set of specific government institutions;
- There are three core values that are central in the discussion of the concept of democracy.

These are values of **liberty/freedom, justice** and **equality**.

- **Popular Sovereignty**

Popular sovereignty also means that the people have the right to withdraw their consent when the government fails to fulfill its obligations under the constitution.

. Such decisions are made within the framework of regular elections and include the choice of who should be elected to public office and what laws should be passed by legislative bodies.

Constitutional Supremacy

This is a principle that puts the constitution at the highest level in the hierarchy of laws.

. They are supreme laws, taking precedence over all others, and defining how all the others should be made

- **Rule of Law**

There are two aspects of the rule of law that are important.

First, the law should govern the people and the people should obey the law. And second, the law must be capable of being obeyed ('good' laws). This made the rule of law different from 'rule of men'.

Secularism

Secularism referred to as an approach that asserts to dismiss or ignores God, the divine, the supernatural, and other religious viewpoints when discussing or participating in politics.

- . In church and state matters, secularists demand a strict separation of religion and politics, keeping prayer and religious instruction out of government, public schools, and other common institutions.

- **Separation of Powers**

The doctrine of separation of powers refers to the idea that political power should be divided among several bodies or officers of the state as a precaution against too much concentration of power.

Most of the literature on federalism has emphasized the relationship between national and sub-national governments but overlooked the organization of sub-national powers.

Free, Fair and Periodic Election

In order to establish democratic government, first the election should be free means all interested parties to the election should get the chance to participate in the election.

Majority Rule Minority Right

- After conducting democratic election, those who gets the majority vote will establish a government.
- The policies, programs and decisions of the majority will govern the country while the right of the minority respected

Protection and Promotion of Human Rights

Human rights are those naturally given values that reflect respect for human life and dignity hence their protection and promotion test the legitimacy and constitutionality of a democratic government

Multiparty System

- Democracy also requires having several political parties working together in one political system.
- These political parties should get equal constitutional guarantee, support and treatment to compete for elections and present their offer freely to the voters.

Actors of Democratization

- Political Parties
- Media
- Civic Societies

— Human Rights: Concepts and Theories

What Are Human Rights?

Human rights are basic to humanity. They apply to all people everywhere.

An understanding of human rights is an important part of our individual status as human beings and of our collective status as members of the global community of humankind

The Universal Declaration of Human Rights (UDHR, Article 2), stipulates that human rights belong to every human being “

without distinction of any kind, such as

race, color, sex, language, religion, political or other opinion, national or social origin, property, birth or other status” (Art. 2).

- Human rights are established upon some main principles
including **universality**,
inalienability,
indivisibility and interdependence.

human rights are **universal**, it is to show their worldwide applicability

- Human rights are **inalienable**. That means you cannot lose these rights any more than you can stop to be a human being
- Human rights are **interdependent and interrelated**. This is to mean that all rights have equal weight/importance and it is not possible for one to fully enjoy any of his/her right without the others

Human Rights and Responsibilities

- Human rights involve responsibility and duties toward other people and the community.
- This is clearly states in various human rights instruments and resolutions issued by the UN including the UN Charter, Universal Declaration of Human Rights (UDHR),
- International Covenant on Civil and Political Rights (ICCPR),
- International Covenant on Economic, Social and Cultural Rights (ICESC),
Convention on the Rights of Children (CRC),
Convention on all forms Discrimination against Women (CEDAW) and the Paris Principles.

- **Landmarks in Development of Human Rights**

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Categories of Human Rights

First, Second and
Third generation rights.

1 Civil and Political Rights

the first generation rights which uphold the sanctity of the individual before the law and guarantee his or her ability to participate freely in civil, economic, and political society.

2 Social and Economic Rights

the second generation (social, economic, and cultural) rights

Social and economic rights

include such rights as

the right to education, health and wellbeing, work and fair remuneration, form trade unions and free associations, leisure time, and the right to social security

Development and Environmental Rights

- Third generation (solidarity) rights are aimed to guarantee that all individuals and groups have the right to share in the benefits of the earth's natural resources, as well as those goods and products that are made through processes of economic growth, expansion, and innovation
- Third Generation (solidarity) rights include rights to public goods such as the right to development, the environment and peace. The third generation rights are still considered as an emerging rights, where the rights holders and duty bearers of the rights included under this category are yet to be identified clearly

The Ethiopian Human Rights System

- The FDRE Constitution classifies human rights as one of its five fundamental principles and declares
- that human rights and freedoms, emanating from the nature of mankind, are inviolable and inalienable and that the human rights of citizens and peoples are respected.
- The Constitution further empowers all Federal and State legislative, executive and judicial organs at all levels with the responsibility and duty to respect and enforce the Constitutional provisions of human rights.
- The FDRE Constitution has established a national human rights

These rights cover civil and political rights (arts. 14 to 38), socio-economic rights (arts. 41 to 42) and group rights (arts. 39, 43 and 44).

About one-third of the Constitution is devoted to enshrining fundamental rights and freedom

Chapter Summary

- Human rights, constitution/alism and democracy are some of the core concerns of this course.
- Human rights are explained in the first section as entitlements with both legal and social recognition.
- The Universal Declaration of Human Rights associates human rights with "the highest aspiration" of the common people, and proclaims itself to be a "common standard" for all.
- Human rights are also recognized and stipulated in our FDRE Constitution in similar manner.
- Thus, the realization of all human rights is not a matter of choice for states and non-state actors working in the area, it is rather an obligation must be fulfil if citizens have to live a worth living life.

THANK YOU

